

An Act

ENROLLED HOUSE
BILL NO. 3269

By: George of the House

and

Gollihare of the Senate

An Act relating to criminal procedure; amending 22 O.S. 2021, Section 171, which relates to issuing arrest warrants by verified complaints; authorizing telephonic or electronic communication of proposed arrest warrants to magistrates; establishing criteria for communicating telephonically; equating orally recorded authorizations by magistrates with issuing arrest warrants; requiring the audio recording, transcribing and filing of conversations related to arrest warrants; providing procedures for obtaining proposed affidavits; and providing an effective date.

SUBJECT: Criminal procedure

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 22 O.S. 2021, Section 171, is amended to read as follows:

Section 171. A. When a complaint, verified by oath or affirmation, is laid before a magistrate, of the commission of a public offense, ~~he must~~ the magistrate shall, if satisfied therefrom that the offense complained of has been committed, and that there is reasonable ground to believe that the defendant has committed it, issue a warrant of arrest.

B. In addition to any other procedure authorized by law, a proposed arrest warrant may be communicated to the magistrate by telephone or by electronic mail or any similar electronic communication which delivers a complete printable image of the arrest warrant.

1. If the proposed arrest warrant is communicated telephonically, the affiant shall:

- a. recite information establishing probable cause to support issuance of the arrest warrant, and
- b. recite the proposed arrest warrant to the magistrate verbatim and obtain the oral permission of the magistrate to print the name of the magistrate on the arrest warrant along with the date and time of the signature.

The oral recorded authorization of the magistrate to print the name of the magistrate on the arrest warrant shall constitute issuance of the arrest warrant under this section. The conversation establishing probable cause, reciting the contents of the arrest warrant verbatim, and any authorization to sign by the magistrate, shall be audio recorded, transcribed, and filed together with the arrest warrant.

2. If communication of the proposed affidavit is made by electronic mail or other electronic communication, the affidavit may contain a notarized acknowledgment, or the affiant may swear to the affidavit by telephone. A magistrate administering an oath telephonically shall endorse upon the face of the affidavit the date and time which the affiant undertook the oath by telephone.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 5th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 28th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____